

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative ruling without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and no party appears at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

September 15, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Response Fire Supply, LLC vs. Cal-West Fire Protection 24-01431854	Demurrer to Third Amended Complaint Defendant Cal-West Fire Protection, Inc. erroneously sued herein as Cal West Fire Protection seeks an order sustaining its demurrer to the 1-7th causes of action of the Third Amended Complaint. Demurrer is continued for meet and confer. CCP§430.41 (a) Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the

	amended pleading before filing a demurrer to the amended pleading. Here, the Declaration of Ashley Baron, Esq provides: 7. The Third Amended Complaint (TAC) was filed on or about May 8, 2026, I was leaving on an extended trip out of the country from mid-May to mid-June. On May 18, 2026, I wrote a Meet and Confer correspondence to Mr. Blitzler and detailed the issues I saw with the TAC. A true and correct copy of that correspondence is attached hereto as Exhibit “1” and incorporated herein by this reference. I received no response to the Meet and Confer, and even with the filed 30-day extension, I was forced to file the Demurrer to preserve my client’s rights. Therefore, no meet-and-confer occurred. Indeed, while Plaintiff’s Attorney, Brett Bitzer, filed an improper declaration, he failed to indicate whether he responded to Defendant’s meet and confer. Significantly, the issues presented in this case make it suitable for meet and confer. In response to this Court’s ruling on the demurrer to the Second Amended Complaint (wherein it appeared the SAC was a sham), Plaintiff filed a Third Amended Complaint which improperly added four (4) new causes of action. Plaintiff’s counsel then attempted to discuss the issue of sham pleading in his declaration—which cannot be considered by the Court. Given that this is the TAC, and no more amendments can be made, the parties should’ve given serious consideration to the history of this case and causes of action pled herein. Demurrer is continued to October 27, 2026 at 10:00 AM. Nine Court days prior to the continued hearing date, Defense counsel to submit a declaration setting forth the meet-and-confer results. To the extent
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		Plaintiff's counsel fails to comply, the Court will set an OSC re Sanctions. Defendant to give notice.
102	Wallace vs. Novak 26-01541076	1. Demurrer to Complaint 2. Case Management Conference Defendant Vladislav Novak ("Defendant") demurs to the Complaint of plaintiff Robert R. Wallace ("Plaintiff"). For the reasons set forth below, the Demurrer is OVERRULED. First Cause of Action for Breach of Contract Defendant argues the Complaint deliberately omits the dates on which any of the three alleged agreements were executed to obscure the fact that the claims are time-barred. Because the Complaint alleges that the contract provided for payment in approximately annual installments over ten years and Defendant made only two payments, a reasonable inference is that the contract was executed and the alleged breaches occurred more than four years before Plaintiff filed this action. Defendant further argues Plaintiff has failed to attach any of the three agreements, set out their terms verbatim, or provide sufficient detail to determine exactly what obligations were owed and when. Defendant contends the Complaint is uncertain because it references three written agreements without identifying which agreement forms the basis of the claim. As Plaintiff points out, the face of the Complaint does not clearly and affirmatively show that the breach of contract claim is time-barred. Thus, Defendant's statute of limitations argument must be rejected. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 ["In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the